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nonprofit could still speak through a separate § 501(c)(4) organization. See 461 U. S., at 544. Put simply, one speaker (the nonprofit) could act (and speak) through two legally separate entities (the § 501(c)(3) and § 501(c)(4) organizations).

Recall also our similar observation in *League of Women Voters*. There we noted that a funding condition’s ban on editorializing would have been constitutional if, in contrast to the law at issue, the statute let noncommercial broadcasters “make known” their “views on matters of public importance” by speaking through legally separate “editorializing affiliate[s].” 468 U. S., at 400. Once again, we made clear that a single speaker can act (and speak) through two legally separate entities. But because the speaker in *League of Women Voters* was not free to do so, we held that the Government’s funding condition violated the First Amendment. *Id.*, at 400–401.

Regan and *League of Women Voters* are far from our only precedents recognizing this firmly entrenched First Amendment principle. See *Legal Services Corporation v. Velazquez*, 531 U. S. 533, 546 (2001) (observing that organizational affiliates may provide “alternative channel[s] for expression” by a single speaker); *Rust v. Sullivan*, 500 U. S. 173, 196–198 (1991) (similar). We reiterated that rule once again in *AOSI I*. See 570 U. S., at 215–217, 219.

Thus, in the First Amendment context, the corporate veil is not an iron curtain. Just the opposite. We attribute speech across corporate lines all the time.

Rightly so. When a funding condition restricts speech, this familiar framework often avoids First Amendment problems by allowing “alternative channel[s]” for speakers to express themselves. *Velazquez*, 531 U. S., at 546. And when a funding condition *compels* speech, the same logic leads to a similarly sensible result: The Government may not require you to speak out of both sides of your mouth, even if each side happens to have been incorporated as a separate legal entity. See *AOSI I*, 570 U. S., at 219.

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A contrary approach would have led to a rather surprising result in *AOSI I*. Assume for a moment that the Policy Requirement simply commanded respondents' clearly identified affiliates to speak—the kind of “direct regulation of speech” that we said “would plainly violate the First Amendment,” *id.*, at 213. Treating corporate lines as ironclad would mean that respondents could not object to that direct distortion of their own message. Under all the cases just discussed, however, that cannot be right. And as discussed below, it is equally wrong under our cases involving speech misattribution.

B

The First Amendment protects speakers from government compulsion that is likely to cause an audience to mistake someone else's message for the speaker's own views. See, e. g., *Hurley*, 515 U. S., at 572–573; *Pacific Gas & Elec. Co. v. Public Util. Comm'n of Cal.*, 475 U. S. 1, 15–16 (1986). Corporate separation makes no meaningful difference in this speech-misattribution context, either.

Consider our unanimous decision in *Hurley*. In that case, a group called the South Boston Allied War Veterans Council organized a parade. 515 U. S., at 560. The Irish-American Gay, Lesbian and Bisexual Group of Boston—a separate group who called themselves “GLIB” for short—wanted to participate. *Id.*, at 561. After the Veterans Council said no, GLIB obtained a court order directing the Veterans Council to let GLIB march in the parade. *Id.*, at 561–562. Recognizing that “every participating unit affects the message conveyed by the parade organizers,” we held in *Hurley* that the order distorted the Veterans Council's protected speech. *Id.*, at 572–573. Because GLIB wanted to “carr[y] its own banner” with its own message, and because onlookers would understand GLIB as “contribut[ing] something to” the parade's “common theme,” the order “essentially requir[ed]” the Veterans Council “to alter the expressive content of their

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parade.” *Id.*, at 572–573, 576. That violated the First Amendment. *Id.*, at 573.

The First Amendment violation in this case is even more apparent. In *Hurley*, the Veterans Council had merely “combin[ed] multifarious voices” of disparate groups without bothering to “isolate an exact message,” yet the First Amendment protected its message from government-compelled distortion all the same. *Id.*, at 569. Respondents in this case have done the Veterans Council one better. They have carefully constructed a cogent message and marshaled their clearly identified foreign affiliates to express it across the globe. See *supra*, at 447–448, 450.

Furthermore, in *Hurley* we could only speculate about what GLIB’s exact message was and why the Veterans Council did not want to be associated with it. See 515 U. S., at 574–575. But here we know exactly what the challenged message is (“a policy explicitly opposing prostitution and sex trafficking”) and why respondents don’t want to be associated with it (the message, among other things, purportedly “stigmatizes one of the very groups whose trust [respondents] must earn to conduct effective HIV/AIDS prevention”). 22 U. S. C. § 7631(f); Brief for Respondents 11. For that reason as well, the First Amendment injury in this case is open, obvious, and unusually well defined.

True, *Hurley* and our other speech-misattribution cases dealt with a speaker complaining about being forced to affiliate with someone else’s speech, rather than (as here) their pre-existing affiliate being forced to speak. Cf. *ante*, at 436–437. But that factual distinction makes no constitutional difference. From a First Amendment perspective, the latter situation is just as bad or even worse, not better.

Consider *Hurley* again. If, rather than requiring the Veterans Council to let GLIB march while carrying its banner, the state court had ordered a previously invited marcher (or worse still, *all* previously invited marchers) to display GLIB’s banner, the Veterans Council would have prevailed

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all the same. By compelling speech from an existing affiliate (or all of them), that order would have required, even more brazenly, that the Veterans Council “alter the expressive content of their parade” in violation of the Veterans Council’s First Amendment rights. 515 U.S., at 572–573. So too if the state court had decreed that GLIB’s banner must adorn a horse, oxen, or for that matter R2-D2, a robot—even though those entities lack their own First Amendment rights. Whether the transmitter of a speaker’s protected message does (or does not) have its own First Amendment rights is beside the point. Cf. *Wooley*, 430 U.S., at 717 (prohibiting New Hampshire from requiring that the state motto adorn a driver’s car, even though cars do not have First Amendment rights).

There is a reason why, until today, we had not confronted a case like the one just described. Cf. *ante*, at 436–437. Requiring someone to host another person’s speech is often a perfectly legitimate thing for the Government to do. See, e.g., *FAIR*, 547 U.S., at 65 (holding that the Government may require law schools to host speech from military recruiters); *PruneYard Shopping Center v. Robins*, 447 U.S. 74, 87–88 (1980) (holding that the Government may require the owner of a private shopping mall to host speech from politically minded pamphleteers). Even the court order at issue in *Hurley* was an understandable (though unconstitutional) application of a “venerable” civil rights law. See 515 U.S., at 571. But because compelling people to profess a belief they do not hold is almost always unconstitutional, see *AOSI I*, 570 U.S., at 213, the Government rarely dares try. The Government’s well-founded reticence in the past is no reason to bless its boldness at present.

Bottom line: The critical question here, as in *Hurley*, is simply whether the Government has demanded a profession of belief that will distort the speaker’s message. *How* the Government causes that distortion makes no constitutional difference. And as explained, enforcing the Policy Require-

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ment against respondents' clearly identified foreign affiliates would plainly distort *respondents'* message. See *supra*, at 447–448, 450. That violates respondents' First Amendment rights.

C

So far as I am aware, we have never before held that an American speaker forfeits First Amendment protection when it speaks through foreign affiliates to reach audiences overseas. It is easy to understand why.

Many American news networks operate through clearly identified foreign affiliates when speaking abroad. Viewers attribute that speech to an American speaker: the network. That is the whole point of using *clearly identified* foreign affiliates. For example, CNN speaks to audiences in the Philippines, Brazil, Indonesia, and other countries using foreign affiliates, usually styled as CNN Philippines, CNN Brazil, CNN Indonesia, and so on. See CNN Worldwide Fact Sheet (Oct. 2019), <https://cnnpressroom.blogs.cnn.com/cnn-fact-sheet>. But does that corporate structure mean that CNN—*i. e.*, the American parent organization—has no First Amendment protection against a Government effort to, say, prevent CNN Mexico from covering the fatal shooting of a Mexican child by a U. S. Border Patrol agent? Cf. *Hernández v. Mesa*, 589 U. S. 93 (2020) (*Hernández II*). Or to *compel* CNN Mexico to run a different story, perhaps one produced by Government personnel, that praises American policy at the border?

We should be highly skeptical. If the Government commandeered CNN's clearly identified foreign affiliate in these or similar ways, whether by monetary pressure or some other means, CNN should have constitutional recourse. Some critical foreign policy interests might complicate the First Amendment calculus—say, a wartime need to keep future battle plans secret. But nothing like that is present here. And it is difficult to accept the notion that the First Amendment permits the Government to suppress,

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compel, or otherwise distort any and all American speech transmitted abroad through a clearly identified foreign affiliate.

III

The upshot is: (1) The messages at issue here belong to American speakers; (2) clearly identified foreign affiliates are a critical means of conveying those messages overseas; and (3) enforcing the Policy Requirement against those affiliates distorts respondents’ own protected speech—and thus violates respondents’ own First Amendment rights.

The majority justifies its contrary result on three main grounds, two of which it says are “bedrock principles” of American law. See *ante*, at 433–436, 438–439. I do not find these arguments persuasive.

A

The first “bedrock principle” on which the majority relies is the supposedly long-settled, across-the-board rule “that foreign citizens outside U. S. territory do not possess rights under the U. S. Constitution.” *Ante*, at 433. That sweeping assertion is neither relevant to this case nor correct on the law.

It is not relevant because, as I have said, this case does not concern the constitutional rights of foreign organizations. This case concerns the constitutional rights of *American* organizations. Every respondent here is—and has always been—American. *AOSI I*, 570 U. S., at 210; see also Brief for Petitioners 7, 19 (acknowledging as much). No foreign entities are party to this case, and respondents have never claimed that the Policy Requirement violates anyone’s First Amendment rights apart from their own. Both the District Court and the Court of Appeals decided the case on that basis. The question before us is clear: whether the First Amendment protects *Americans* when they speak through clearly identified foreign affiliates to reach audiences over-

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seas. See *supra*, at 448. Whether the foreign affiliates themselves have their own First Amendment rights is not at issue. See Brief for Respondents 36, n. 3.

Even taken on its own terms, the majority’s blanket assertion about the extraterritorial reach of our Constitution does not reflect the current state of the law. The idea that foreign citizens abroad *never* have constitutional rights is not a “bedrock” legal principle. At most, one might say that they are unlikely to enjoy very often extraterritorial protection under the Constitution. Or one might say that the matter is undecided. But this Court has studiously avoided establishing an absolute rule that forecloses that protection in all circumstances.

In *Hernández v. Mesa*, 582 U. S. 548 (2017) (*per curiam*) (*Hernández I*), for example, we specifically declined to decide the “sensitive” question whether, on the facts then before us, a Mexican citizen standing on Mexican soil had Fourth Amendment rights—precisely because the answer to that extraterritoriality question “may have consequences that are far reaching.” *Id.*, at 554. *Hernández* later came to this Court again, and we decided the case on alternative grounds. See *Hernández II*, 589 U. S., at 113–114. Were the majority’s categorical rule of (non)extraterritoriality etched in stone, we could have disposed of *Hernández* the first time around in a few short sentences.

Nor do the cases that the majority cites support an absolute rule. See *ante*, at 434. The exhaustive review of our precedents that we conducted in *Boumediene v. Bush*, 553 U. S. 723 (2008), pointed to the opposite conclusion. In *Boumediene*, we rejected the Government’s argument that our decision in *Johnson v. Eisentrager*, 339 U. S. 763 (1950), “adopted a formalistic” test “for determining the reach” of constitutional protection to foreign citizens on foreign soil. 553 U. S., at 762. This is to say, we rejected the position that the majority propounds today. See *ante*, at 434, 435, and n. (quoting *Eisentrager* at length). Its “constricted reading”

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of *Eisentrager* and our other precedents is not the law. See *Boumediene*, 553 U. S., at 764; see also, *e. g.*, Neuman, Understanding Global Due Process, 23 Geo. Immigration L. J. 365, 400 (2009) (describing our cases as rejecting any absolute view).

The law, we confirmed in *Boumediene*, is that constitutional “questions of extraterritoriality turn on objective factors and practical concerns” present in a given case, “not formalism” of the sort the majority invokes today. 553 U. S., at 764. Those considerations include the extent of *de facto* U. S. Government control (if any) over foreign territory. See *ante*, at 434. But they also include the nature of the constitutional protection sought, how feasible extending it would be in a given case, and the foreign citizen’s status vis-à-vis the United States, among other pertinent circumstances that might arise. 553 U. S., at 766; see also *United States v. Verdugo-Urquidez*, 494 U. S. 259, 278 (1990) (Kennedy, J., concurring) (providing the decisive fifth vote for rejecting a foreign citizen’s claim to constitutional protection on foreign soil outside U. S. control because “[t]he conditions and considerations of *this case* would make adherence to the *Fourth Amendment’s warrant requirement* impracticable and anomalous” (emphasis added)). Our precedents reject absolutism. Indeed, even our most sweeping statements about foreign citizens’ (lack of) constitutional rights while outside U. S. Territory have come with limits. See, *e. g.*, *Landon v. Plasencia*, 459 U. S. 21, 32 (1982) (noting that “an alien seeking initial admission to” this country “has no constitutional rights *regarding his application*” (emphasis added)); *Kleindienst v. Mandel*, 408 U. S. 753, 762 (1972) (similar).

There is wisdom in our past restraint. Situations where a foreign citizen outside U. S. Territory might fairly assert constitutional rights are not difficult to imagine. Long-term permanent residents are “foreign citizens.” Does the Constitution therefore allow American officials to assault them

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at will while “outside U. S. territory”? Many international students attend college in the United States. Does the First Amendment permit a public university to revoke their admission based on an unpopular political stance they took on social media while home for the summer? Foreign citizens who have never set foot in the United States, for that matter, often protest when Presidents travel overseas. Does that mean Secret Service agents can, consistent with our Constitution, seriously injure peaceful protestors abroad without any justification?

We have never purported to give a single “bedrock” answer to these or myriad other extraterritoriality questions that might arise in the future. To purport to do so today, in a case where the question is not presented and where the matter is not briefed, is in my view a serious mistake.

And there is no need to set forth an absolute rule here. Respondents have conceded that their foreign affiliates lack First Amendment rights of their own while acting abroad. See *ante*, at 433–434. If in spite of everything else, the majority considers this point material to its decision, all that need be said is: “We accept respondents’ concession and proceed on that basis.” To say so much more “run[s] contrary to the fundamental principal of judicial restraint,” a principle that applies with particular force to constitutional interpretation. *Washington State Grange v. Washington State Republican Party*, 552 U. S. 442, 450 (2008); see also, *e. g.*, *Lyng v. Northwest Indian Cemetery Protective Assn.*, 485 U. S. 439, 445 (1988); *Three Affiliated Tribes of Fort Berthold Reservation v. Wold Engineering, P. C.*, 467 U. S. 138, 158 (1984); *United States v. Raines*, 362 U. S. 17, 21 (1960); *Liverpool, New York & Philadelphia S. S. Co. v. Commissioners of Emigration*, 113 U. S. 33, 39 (1885).

B

The majority’s second supposedly “bedrock principle” is that “separately incorporated organizations are separate

legal units with distinct legal rights and obligations.” *Ante*, at 435. Sometimes true, sometimes not. This baseline rule gives way in many contexts, and our First Amendment precedents (including *AOSI I*) refute any suggestion that a workaday principle of corporate law somehow resolves the constitutional issue here in dispute.

As the majority acknowledges, corporate law itself permits courts to pierce or otherwise disregard the corporate veil in a variety of circumstances. See *ante*, at 435–436. Those narrow exceptions, however, are not the only time the law looks past corporate formalities. For instance, we have treated “several nominally separate business entities” as “a single employer” for purposes of federal labor law. *Radio & Television Technicians v. Broadcast Service of Mobile, Inc.*, 380 U. S. 255, 256 (1965) (*per curiam*). Earlier this Term, we reaffirmed that one corporate entity may sometimes invoke the right of another, legally separate entity to compel arbitration. See *GE Energy Power Conversion France SAS v. Outokumpu Stainless USA, LLC*, 590 U. S. 432, 437 (2020). And these are far from the only relevant examples. See, e. g., *American Needle, Inc. v. National Football League*, 560 U. S. 183, 196 (2010) (observing that, in many antitrust cases, corporate formalities are “not determinative”).

More to the point, our First Amendment precedents leave no doubt that corporate formalities have little to say about the issue now before us. We have made clear again and again (and again) that speech may be attributed across corporate lines in the First Amendment context—including in our previous opinion in this very case. See *AOSI I*, 570 U. S., at 219 (concluding that speech uttered involuntarily by legally separate affiliates may be attributed to respondents if the affiliates are “clearly identified” with respondents); *League of Women Voters*, 468 U. S., at 400 (observing that funding conditions that restrict speech can survive constitutional scrutiny if the speaker may “make known its views on matters of public importance through” a legally separate

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affiliate—and if not, not); *Regan*, 461 U. S., at 544 (similar); *Rust*, 500 U. S., at 196–198 (similar); *Velazquez*, 531 U. S., at 546–547 (similar). And these precedents further establish that merely requiring speakers to work through affiliates is “not unduly burdensome” and can therefore cure, rather than create, First Amendment concerns. *Regan*, 461 U. S., at 545, n. 6. Contra, *ante*, at 438–439 (suggesting that such a requirement would be unconstitutional). Small wonder the majority can muster only two context-specific and statute-specific cases—one addressing the Foreign Sovereign Immunities Act, the other involving the Racketeer Influenced and Corrupt Organizations Act—as affirmative support for its conclusion that corporate formalities somehow control the First Amendment question before us. See *ante*, at 435 (citing *Dole Food Co. v. Patrickson*, 538 U. S. 468 (2003), and *Cedric Kushner Promotions, Ltd. v. King*, 533 U. S. 158 (2001)).

The majority also attempts to distinguish the facts before us now from the facts that were before us last time. It asserts that, in contrast to the affiliations we addressed in *AOSI I*, respondents’ “current affiliations with foreign organizations are their own choice.” *Ante*, at 439. There are two problems with this. First, the description is not accurate. Foreign governments—and increasingly, the U. S. Government—often require respondents to work through foreign affiliates. See, e. g., App. 368, 373–375. Second, even if respondents’ associations with foreign affiliates *were* voluntary, it would not solve the First Amendment problem.

In *Wooley*, for example, it was the drivers’ choice to own a car, but that did not mean they could be compelled to convey the Government’s message on their car’s license plate. See 430 U. S., at 717. And in *Hurley*, as explained, the Government would have violated the parade organizers’ First Amendment rights just the same if it had compelled speech from a previously invited marcher, whether human, animal, or droid. See *supra*, at 453–454. Can the majority really mean to suggest otherwise, simply because the parade orga-

nizers' decision to invite the marcher in the first place was "their own choice"?

C

The majority also makes two practical arguments, but neither justifies the First Amendment costs of its decision.

The majority first says that a ruling in respondents' favor would disrupt American foreign policy by requiring the Government to fund "organizations that may not align with U. S. values." *Ante*, at 436. We dismissed this same concern in *AOSI I*. The Policy Requirement, we explained, does not merely help the Government "enlist the assistance of those with whom it already agrees." *AOSI I*, 570 U. S., at 218. It pressures funding recipients "*to adopt* a particular belief." *Ibid.* (emphasis added). All that is at stake here, in other words, is whether the Government may leverage the power of the purse to win converts to its cause. That bare desire to regulate protected speech is far from any foreign policy interest that could conceivably overcome a speaker's First Amendment right to convey its message free from government-compelled distortion. Cf. *New York Times Co. v. United States*, 403 U. S. 713 (1971) (*per curiam*).

The majority also fears that determining whether Government action creates a risk of speech misattribution (and with it speech distortion) is a "legally unmoored" standard rife with "difficult line-drawing exercises." *Ante*, at 438. But we have drawn just this kind of line many times. See, *e. g.*, *PruneYard*, 447 U. S., at 87 (holding that "views expressed by members of the public" in a privately owned shopping mall "will not likely be identified with those of the owner"); *Hurley*, 515 U. S., at 572 (holding that a marcher's message will likely be attributed to the parade organizer's, since "every participating unit" in a parade "affects the [overall] message"); *FAIR*, 547 U. S., at 65 (holding that nothing about having military recruiters on campus "suggests that law schools agree with any speech by recruiters"). I should think that the price of making difficult judgment calls is well

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worth paying to protect First Amendment rights. See *McCutcheon v. Federal Election Comm’n*, 572 U. S. 185, 209 (2014); *Lloyd Corp. v. Tanner*, 407 U. S. 551, 570 (1972). And “on the facts presented in this case,” at any rate, “the answer is clear.” *Id.*, at 570. Enforcing the Policy Requirement violates respondents’ First Amendment rights, just as it did before.

* * *

The Court today concludes that respondents’ foreign affiliates “do not have a First Amendment right to disregard the Policy Requirement.” *Ante*, at 439. Respondents have never argued otherwise. Rather, throughout this litigation they have asserted their own First Amendment right to speak their mind, rather than the Government’s message. Here, respondents claim First Amendment protection when they speak through foreign affiliates to address audiences abroad. By denying respondents that protection, I fear the Court’s decision will seriously impede the countless American speakers who communicate overseas in a similar way. That weakens the marketplace of ideas at a time when the value of that marketplace for Americans, and for others, reaches well beyond our shores. With respect, I dissent.

REPORTER'S NOTE

The next page is purposely numbered 1001. The numbers between 463 and 1001 were intentionally omitted, in order to make it possible to publish the orders with *permanent* page numbers, thus making the official citations available upon publication of the preliminary prints of the United States Reports.

Page Proof Pending Publication

ORDERS FOR JUNE 18 THROUGH
JUNE 29, 2020

JUNE 18, 2020

Miscellaneous Order

No. 19–1348. *BOURGEOIS ET AL. v. BARR*, ATTORNEY GENERAL, ET AL. C. A. D. C. Cir. Motion to expedite consideration of the petition for writ of certiorari granted. Respondents are directed to file a response to the petition on or before 5 p.m., Friday, June 19, 2020. Petitioners may file a reply brief on or before 5 p.m., Monday, June 22, 2020. *Amicus curiae* briefs may be filed on or before 5 p.m., Friday, June 19, 2020.

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Certiorari Dismissed

No. 19–8327. *IBEABUCHI v. BRNOVICH*, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. As petitioner has repeatedly abused this Court’s process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 19–8365. *LOPEZ v. CALIFORNIA*. Ct. App. Cal., 4th App. Dist., Div. 3. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

Miscellaneous Orders

No. 19M143. *ROJAS v. MEINSTER ET AL.*; and
No. 19M144. *SESZTAK ET UX. v. GREAT NORTHERN INSURANCE CO., INC., ET AL.* Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

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No. 19M145. IN RE WRIGHT;
No. 19M146. IN RE WRIGHT; and
No. 19M147. ALBRITTON *v.* BRNOVICH, ATTORNEY GENERAL
OF ARIZONA, ET AL.; and ALBRITTON *v.* SHINN, DIRECTOR, ARIZONA
DEPARTMENT OF CORRECTIONS. Motions for leave to proceed as veterans denied.

No. 19–7597. WAZNEY *v.* NELSON, WARDEN. C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 1304] denied.

No. 19–8575. IN RE ROBINSON; and
No. 19–8578. IN RE SMITH. Petitions for writs of habeas corpus denied.

No. 19–8276. IN RE SPENCE; and
No. 19–8278. IN RE SPENCE. Petitions for writs of mandamus denied.

Certiorari Denied

No. 19–601. COLLABO INNOVATIONS, INC. *v.* SONY CORP. ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 778 Fed. Appx. 954.

No. 19–868. MINER ET AL. *v.* PICATTI. Sup. Ct. Idaho. Certiorari denied. Reported below: 165 Idaho 611, 449 P. 3d 403.

No. 19–924. INDIANA *v.* RUIZ. Sup. Ct. Ind. Certiorari denied. Reported below: 123 N. E. 3d 675.

No. 19–937. CHEROKEE NATION *v.* BERNHARDT, SECRETARY OF THE INTERIOR, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 936 F. 3d 1142.

No. 19–939. GUSTUS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 926 F. 3d 1037.

No. 19–980. ARIANA M. *v.* HUMANA HEALTH PLAN OF TEXAS, INC. C. A. 5th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 287.

No. 19–1001. COOPER ET AL. *v.* FLAIG ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 269.

No. 19–1008. HODGE ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 933 F. 3d 468.

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No. 19–1009. *ALTERA CORPORATION & SUBSIDIARIES v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 9th Cir. Certiorari denied. Reported below: 926 F. 3d 1061.

No. 19–1037. *SOK BUN v. UNITED STATES*; and

No. 19–8000. *PETERSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 945 F. 3d 144.

No. 19–1062. *CJ CHEILJEDANG CORP. ET AL. v. INTERNATIONAL TRADE COMMISSION ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 932 F. 3d 1342.

No. 19–1074. *CELGENE CORP. v. PETER, DEPUTY UNDER SECRETARY OF COMMERCE FOR INTELLECTUAL PROPERTY AND DEPUTY DIRECTOR, PATENT AND TRADEMARK OFFICE*. C. A. Fed. Cir. Certiorari denied. Reported below: 931 F. 3d 1342.

No. 19–1134. *BALEY ET AL. v. UNITED STATES ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 942 F. 3d 1312.

No. 19–1153. *SUZUKI ET AL. v. DEEDY*. C. A. 9th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 549.

No. 19–1173. *COMCAST CORP. ET AL. v. INTERNATIONAL TRADE COMMISSION ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 951 F. 3d 1301.

No. 19–1177. *AMERICAN INSTITUTE FOR INTERNATIONAL STEEL, INC., ET AL. v. UNITED STATES ET AL.* C. A. Fed. Cir. Certiorari denied.

No. 19–1216. *BOTOFAN-MILLER v. MILLER*. Sup. Ct. Ore. Certiorari denied.

No. 19–1222. *DUCKWORTH v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 573.

No. 19–1224. *MANNING v. KIM*. Ct. App. Cal., 1st App. Dist., Div. 1. Certiorari denied.

No. 19–1229. *MULCAHY v. ASPEN SKIING Co.* Ct. App. Colo. Certiorari denied.

No. 19–1230. *KNIGHT v. CHENEGA SECURITY, INC., ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 286.

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No. 19–1232. *BANK v. AL JOHNSON’S SWEDISH RESTAURANT & BUTIK, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 795 Fed. Appx. 822.

No. 19–1233. *DOYLE v. PALMER, CLERK, UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NEW YORK.* C. A. 2d Cir. Certiorari denied. Reported below: 787 Fed. Appx. 794.

No. 19–1235. *CLARK v. VIRGINIA.* Sup. Ct. Va. Certiorari denied.

No. 19–1237. *WHEELER v. NORTH DAKOTA ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–1243. *ARMSTRONG v. WILSON COUNTY, NORTH CAROLINA, ET AL.* C. A. 4th Cir. Certiorari denied.

No. 19–1256. *LEVIN v. FLORIDA.* Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 284 So. 3d 1072.

No. 19–1262. *GREER v. MEHIEL ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 805 Fed. Appx. 25.

No. 19–1266. *H. B., A MINOR, INDIVIDUALLY AND AS SUCCESSOR IN INTEREST TO SHIRLEY, BY AND THROUGH HIS GUARDIAN AD LITEM, SHIRLEY v. CITY OF TORRANCE, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 60.

No. 19–1313. *DIXON v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 95.

No. 19–7260. *KAUFMANN v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 940 F. 3d 377.

No. 19–7310. *SMITH v. FLORIDA.* Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 284 So. 3d 452.

No. 19–7382. *JOHNSON v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 370.

No. 19–7544. *WAGGY v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 936 F. 3d 1014.

No. 19–7699. *CARR v. MISSISSIPPI.* Sup. Ct. Miss. Certiorari denied.

No. 19–7743. *LANGLEY v. OREGON.* Sup. Ct. Ore. Certiorari denied.

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No. 19–7794. *FOGLEMAN v. MISSISSIPPI*. Sup. Ct. Miss. Certiorari denied. Reported below: 283 So. 3d 685.

No. 19–7834. *SOTO v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 158 Ohio St. 3d 44, 2019-Ohio-4430, 139 N. E. 3d 889.

No. 19–7865. *MECHAM v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 950 F. 3d 257.

No. 19–7991. *GARCIA v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 936 F. 3d 1128.

No. 19–8037. *RUTTKAMP v. BANK OF NEW YORK MELLON, FKA BANK OF NEW YORK*. App. Ct. Conn. Certiorari denied.

No. 19–8229. *HARRIS v. OKLAHOMA*. Ct. Crim. App. Okla. Certiorari denied. Reported below: 2019 OK CR 22, 450 P. 3d 933.

No. 19–8272. *TATE v. FORD, WARDEN*. Sup. Ct. Ga. Certiorari denied. Reported below: 307 Ga. 383, 835 S. E. 2d 198.

No. 19–8280. *JAIME JIMENEZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–8281. *ABDULLAH v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–8283. *TONEY v. DICKSON ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 612.

No. 19–8288. *TRUONG ET AL. v. BARNARD ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–8289. *YEYILLE v. ALTONAGA ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–8292. *TINSLEY v. YATES, ADMINISTRATOR, ADULT DIAGNOSTIC AND TREATMENT CENTER, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8298. *KISSI v. UNITED STATES DISTRICT COURT FOR THE DISTRICT OF MARYLAND*. C. A. 4th Cir. Certiorari denied.

No. 19–8299. *PATTIOAY v. HAWAII*. C. A. 9th Cir. Certiorari denied.

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No. 19–8303. *METOYER v. FUDGE*, IN HER INDIVIDUAL AND OFFICIAL CAPACITY AS EXECUTIVE DIRECTOR OF THE OKLAHOMA PARDON AND PAROLE BOARD, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 849.

No. 19–8305. *ONONUJU v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–8306. *NWAGU v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 19–8307. *LOPEZ v. COOK*, COMMISSIONER, CONNECTICUT DEPARTMENT OF CORRECTION. App. Ct. Conn. Certiorari denied. Reported below: 195 Conn. App. 904, 224 A. 3d 938.

No. 19–8309. *FISHER v. FRONTLINE NATIONAL*. C. A. 4th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 125.

No. 19–8313. *TULLY v. CLARKE*, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 426.

No. 19–8314. *WARD v. CROW*, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 10th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 712.

No. 19–8320. *TALLEY v. PENNSYLVANIA DEPARTMENT OF CORRECTIONS ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 791 Fed. Appx. 291.

No. 19–8321. *CARNEY v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–8323. *COODEY v. OKLAHOMA*. Ct. Crim. App. Okla. Certiorari denied.

No. 19–8324. *HORNSBY v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 19–8331. *RODRIGUEZ v. GRIFFIN*, SUPERINTENDENT, GREEN HAVEN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 19–8343. *ALLEN v. VANNOY*, WARDEN. C. A. 5th Cir. Certiorari denied.